

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #9	CCRB Case #: 202103316	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/21/2021 2:12 PM	Location of Incident: § 87(2)(b)	Precinct: 18	18 Mo. SOL 11/21/2022	EO SOL 11/21/2022	
Date/Time CV Reported Sat, 05/22/2021 8:21 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/02/2021 10:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Eric Hatkewitz	03528	936740	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Basquez	04673	948642	MTN PCT
2. POF Shauna Paramourreid	09059	953215	MTN PCT
3. POM Kevin Gleason	04430	949037	MTN PCT
4. DTS Paul Robinson	01399	931061	MTN PCT
5. POF Adela Redzematovic	09493	954266	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Eric Hatkewitz	Abuse: Sergeant Eric Hatkewitz forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with IAB via telephone on May 22, 2021, generating original log #2021-11684. Spin-off log #21-12041 was then forwarded to the CCRB, where it was received on June 2, 2021.

On May 21, 2021, at approximately 2:12 PM, Sgt. Eric Hatkewitz and PO Adela Redzematovic of the Midtown North Precinct responded to § 87(2)(b) in Manhattan. Already on scene were Det. Paul Robinson, PO Kevin Gleason, PO Shauna Paramourreid, and PO David Basquez of the Midtown North Precinct. Sgt. Hatkewitz had § 87(2)(b) forcibly removed to a hospital (**Allegation A: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was not arrested or issued a summons. § 87(4-b) § 87(2)(g)

The investigation obtained BWC videos from all six responding officers and surveillance video from the hotel.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Eric Hatkewitz forcibly removed § 87(2)(b) to the hospital.

Located at § 87(2)(b) in Manhattan is § 87(2)(b), areas of which were being used as a shelter as of the date of this incident. § 87(2)(b) was a client of the shelter and temporarily resided there.

§ 87(2)(b) stated that on the date in question, she engaged in a verbal dispute with § 87(2)(b) a staff member at the shelter. Two male officers responded, determined that this dispute was not a police matter, and departed without taking any further action. Thereafter, § 87(2)(b) and § 87(2)(b) argued again, and § 87(2)(b) knocked § 87(2)(b)'s food to the floor. § 87(2)(b) went to the lobby and called a social worker. Meanwhile, an unknown shelter staff member called for police. Sgt. Hatkewitz, PO Redzematovic, Det. Robinson, PO Gleason, PO Paramourreid, and PO Basquez responded and met § 87(2)(b) in the lobby. The officers began to handcuff § 87(2)(b) and informed her that she was going to a hospital. § 87(2)(b) protested and asked why she needed to visit a hospital, but the officers did not provide any answer. § 87(2)(b) did not have an opportunity to speak with responding EMTs before officers handcuffed her. § 87(2)(b) argued that she had been sitting calmly in the lobby when the officers arrived, but nonetheless she was handcuffed, removed from the premises, and transported via ambulance to § 87(2)(b) in Manhattan.

§ 87(2)(b) did not complete HIPAA forms and as such the investigation was unable to obtain her medical records from the hospital or the Pre-Hospital Care Report Summary from the ambulance company which transported her.

NYPD records show that Midtown North officers responded to two earlier calls involving § 87(2)(b) at the same location on the date in question. First, at 12:21 PM, Det. Robinson and PO Gleason responded when the dispatcher reported "An AIDED female pregnant refusing to go in her room" (Board Review 01 for 911 audio; Board Review 02 for radio communications audio; Board Review 03 for communications summary; Board Review 04 for Event Information, pages 1-6). The officers determined that the incident constituted a dispute rather than an "EDP" job and departed. Afterward, at 1:06 PM, PO Paramourreid and PO Basquez responded to the report of a "[10-]52

dispute” at § 87(2)(b) which they marked as 10-91 (non-crime corrected) (Board Review 05 for 911 audio; Board Review 02 for radio communications audio; Board Review 03 for communications summary; Board Review 04 for Event Information, pages 7-11). Per BWC videos from that call, the officers were unable to locate § 87(2)(b) within the hotel and departed (Board Review 06 to 08). Finally, at 2:09 PM, officers responded to the report of a “violent EDP” (Board Review 09 for 911 audio; Board Review 10 for radio communications audio; Board Review 03 for communications summary; Board Review 04 for Event Information, pages 12-18).

BWC videos captured the entirety of the officers’ third response, after 2:09 PM, when § 87(2)(b) was transported to a hospital (Board Review 11 to 17; Board Review 18 for summaries). PO Paramourreid and PO Basquez responded first and met § 87(2)(b) in the lobby. They were followed by Det. Gleason and Det. Robinson, and then by Sgt. Hatkewitz and PO Redzematovic.

Collectively, the officers’ BWC videos reveal that § 87(2)(b) sat alone in the lobby and spoke in an elevated tone when officers approached her there. She exhibited no other noteworthy or threatening behavior.

Between the 1 minute 15 second mark and the 5-minute mark, PO Basquez’s BWC video shows § 87(2)(b) describing her earlier altercation with a staff member (Board Review 12). In the video, she is agitated but speaks rationally and coherently. She acknowledges having knocked food to the floor and makes counter claims against a staff member. She argues that although she speaks loudly, she is in the lobby minding her own business. After the 4 minute 50 second mark, PO Basquez says to § 87(2)(b) “They [EMS] have to check you out.” § 87(2)(b) protests that she should not be transported to a hospital simply because she speaks loudly. She also states that she should have the right to refuse transportation to a hospital. She reiterates these concerns through the 9-minute mark.

PO Paramourreid testified as to the details of shelter staff members’ complaint against § 87(2)(b). She stated that when she initially responded to this location, staff members informed her that § 87(2)(b) was behaving “erratically” and had thrown paint on the ground. They made no other specific allegation against § 87(2)(b). Upon PO Paramourreid’s second response to this location (the incident in question), staff members repeated the same concerns. They articulated no new, specific concerns.

Per PO Paramourreid’s testimony, before § 87(2)(b) was handcuffed, her only notable behavior was “screaming.” She did not fight anyone, and PO Paramourreid did not remember her making any verbal threat. Additionally, PO Paramourreid stated that neither she nor her partner reviewed hotel surveillance video or conducted interviews with staff regarding staff allegations against § 87(2)(b). Nonetheless, PO Paramourreid stated that she believed that § 87(2)(b) she might pose a risk of harm to herself or others because of her “erratic” behavior. When asked, PO Paramourreid did not offer any more specific concern about § 87(2)(b)’s behavior.

Sgt. Hatkewitz was the highest-ranking NYPD officer on scene. He stated that § 87(2)(b) was handcuffed and transported to a hospital on his authority. Sgt. Hatkewitz received a radio run describing an “EDP,” and when he encountered § 87(2)(b) in the lobby, she was screaming and behaving in an “aggressive” manner. She screamed that she had been assaulted and about an altercation with a shelter staff member. Sgt. Hatkewitz explained that § 87(2)(b) seemed “aggressive” because of her loud volume and because she was being “standoffish.” After Sgt. Hatkewitz observed § 87(2)(b), PO Gleason informed him that § 87(2)(b) had a prior “psych history,” but Sgt. Hatkewitz did not inquire further about the details of her reported psychiatric diagnosis. Additionally, an officer informed Sgt. Hatkewitz that § 87(2)(b) had thrown

something on the floor. Lastly, PO Gleason informed Sgt. Hatkewitz that officers had responded to earlier calls at that location. Sgt. Hatkewitz learned no additional information about those earlier jobs. He did not know who had placed any of the 911 calls. On scene, he spoke only with his officers and did not speak with any shelter or hotel staff. He did not know if any of his officers reviewed surveillance video to investigate any allegation made against § 87(2)(b). He did not review any surveillance video and did not ask officers if they had done so. He did not ask his officers about any investigative steps they might have taken with regard to the allegations brought against § 87(2)(b) by shelter staff.

Sgt. Hatkewitz understood the NYPD Patrol Guide definition of an “Emotionally Disturbed Person” to be “a person who posed a risk of harm to himself or to others.” Sgt. Hatkewitz stated that he assessed § 87(2)(b) to be an Emotionally Disturbed Person because she was screaming and because she had a psychiatric history. As such, he believed that she might pose a risk to herself. However, Sgt. Hatkewitz was unable to specify further how § 87(2)(b) might pose a risk of harm to herself. He did not recall § 87(2)(b) making any verbal threat against anyone and did not recall her indicating that she posed a specific risk of self-harm.

During the CCRB interview, Sgt. Hatkewitz was shown portions of his own BWC video from this incident (Board Review 16). Sgt. Hatkewitz enters the lobby at the 50 second mark. He speaks with PO Gleason for thirty seconds, beginning at the 1-minute mark. PO Gleason says to Sgt. Hatkewitz, “They [shelter staff] explained – she has to go. She has a previous psych diagnosis. They [PO Basquez and PO Paramourreid] have been here for her today. We’ve been here [inaudible]. This is just what she does. She yells.” PO Gleason adds that he has not dealt with § 87(2)(b) in the past. At the 1 minute 40 second mark, Sgt. Hatkewitz appears to signal to Det. Robinson, who proceeds to handcuff § 87(2)(b). Sgt. Hatkewitz confirmed during his CCRB interview that at that moment in the video, he nodded his head to Det. Robinson, indicating that, “Yes,” § 87(2)(b) would be transported to a hospital.

Sgt. Hatkewitz stated that beyond the interactions shown in his BWC video, he had no communication with any officer about this situation, whether via telephone, radio, or any other conversation not captured on BWC or not previously asked about during the CCRB interview. All the information he learned about § 87(2)(b)'s behavior was captured during the above-described 40 seconds of BWC video.

NYPD Patrol Guide Procedure 221-13 defines an Emotionally Disturbed Person as a person who appears to be mentally ill or temporarily deranged and is conducting himself or herself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others (Board Review 19). This procedure instructs that an officer is to have such an individual removed to a hospital via ambulance.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- Sgt. Hatkewitz has been a member of service for 16 years and has been a subject in one other CCRB complaint with two allegations, neither of which was substantiated. § 87(2)(g)
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case could not be mediated § 87(2)(g)
- On August 20, 2021, a request was submitted to the Office of the Comptroller for any Notice of Claim filed regarding this incident. As of the writing of this report, no response has yet been received.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 9

Investigator:	<u>Samuel Ross</u>	<u>Inv. Samuel Ross</u>	<u>08/20/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>§ 87(2)(b) West</u>	<u>IM § 87(2)(b) West</u>	<u>11/03/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date